

INDEPENDENT SALES REPRESENTATIVE AGREEMENT

(1099 Independent Contractor — Roofing Sales)

DRAFT FOR REVIEW — NOT YET EXECUTED. This document is a working draft prepared at the direction of Daniel P. Bivins (Collaborative Concept LLC). It is **not legal advice**. Items marked in **[brackets]** must be confirmed before signing, and the parties should have this reviewed by a Florida-licensed attorney before execution.

This Independent Sales Representative Agreement (the "**Agreement**") is entered into as of **June 30, 2026** (the "**Effective Date**"), by and between:

- **SeaBreeze Roofing & Solar**, a Florida licensed roofing and solar contractor (FL Roofing License CCC1328689; FL Solar License CVC57073), with a principal place of business at **2600 High Ridge Rd, Boynton Beach, FL 33426** ("**Company**"); and
- **Collaborative Concept LLC**, a Florida limited liability company, acting by and through **Daniel P. Bivins**, with a principal place of business at **513 W Drew St, Lantana, FL 33462**, email dannybivins83@gmail.com, phone (561) 475-8615 ("**Representative**" or "**Rep**").

Company and Representative are each a "**Party**" and together the "**Parties**."

1. Engagement & Independent Contractor Status

1.1 **Engagement.** Company engages Representative as a non-exclusive independent sales representative to solicit and originate roofing sales (including re-roofing and roofing service/repair work) on Company's behalf, and Representative accepts that engagement, subject to the terms of this Agreement.

1.2 **1099 Independent Contractor.** Representative is an **independent contractor**, not an employee, partner, agent for any purpose beyond sales solicitation, or joint venturer of Company. Nothing in this Agreement creates an employment relationship.

1.3 **Taxes & Benefits.** Company will report Representative's compensation on **IRS Form 1099**. Company will **not** withhold income, Social Security, Medicare, or other taxes. Representative is solely responsible for all self-employment and income taxes on compensation paid under this Agreement and is **not** entitled to employee benefits (health insurance, paid time off, workers' compensation, unemployment, retirement, etc.). Representative shall furnish a completed **IRS Form W-9** before the first commission is paid.

1.4 **Control of Work.** Representative controls the manner, method, and hours of his own sales activity. Representative furnishes his own vehicle, phone, and basic sales tools, and pays his own routine business expenses except as the Parties agree in writing.

1.5 **Authority.** Representative may solicit and present offers but has **no authority** to bind Company, set final pricing, sign contracts, approve scopes, or make warranty commitments unless expressly authorized in writing by Company. All customer contracts are between the customer and Company.

2. Duties of Representative

2.1 Solicit, develop, and close roofing sales (re-roofs and roofing service work) for Company.

2.2 Present Company's products, pricing, and terms accurately and not make false or unauthorized representations or warranties.

2.3 Submit all signed customer agreements, deposits, and job documentation to Company promptly and through Company's designated process so that each sale can be properly credited to Representative.

2.4 Conduct himself lawfully and professionally, and comply with all applicable licensing, permitting, and consumer-protection laws relating to roofing sales in Florida.

3. Commission — Compensation

3.1 Commission Schedule

Sale type	Commission rate	How it is paid
Re-roofing sales (all re-roofs, all volume)	7% (<i>flat, across the board</i>)	split 50/50 — see 3.5
Service / repair sales (all non-re-roof roofing service work)	10% (<i>flat, across the board</i>)	in full on final payment — see 3.5

3.2 **Re-roof sales.** All re-roofing sales originated by Representative are commissioned at a **flat 7%**, across the board, with no volume tier and no rate change over time.

3.3 **Service sales.** All roofing service and repair sales (non-re-roof) are commissioned at a **flat 10%**, across the board.

3.4 **Wood bills & material ordering.** On re-roof jobs, replacement of rotten/damaged wood decking ("**wood bills**") is **not** an upfront line item — it is discovered and billed **during the job**, which raises the job's **final** contract total. Because the front-end commission is calculated on the original contract price (before the wood is known) and the back-end commission is calculated on the **final total** (which includes the wood), Representative is automatically paid commission on the wood through the back-end calculation in Section 3.5 — i.e., the wood earns the **back-end 3.5%**. Representative **handles the wood bills and material ordering** for re-roof jobs.

3.5 **Re-roof payment timing — 50/50 (front end / back end).** Each re-roof commission (7% total) is paid in two equal halves:

- **Front-end half = 3.5%**, calculated on the **original contract price**, paid upon Company's **collection of the customer's initial deposit**.
- **Back-end half = 3.5%**, calculated on the **final total project amount** (the final contract price **including** any wood bills / decking upcharges added during the job), paid **once the job's final payment is collected in full** ("done done").

Net effect: Representative earns the full **7% on the base contract price**, plus an additional **3.5% on any wood/decking** added during the job (the wood only catches the back-end half because it arises after the deposit).

3.6 Service payment timing. Each service / repair commission (10%) is paid **in full upon Company's collection of the customer's final payment** on the job.

3.7 Commission basis. Commission is calculated on the **gross contract amount** (original contract price for the front-end half; final total including wood for the back-end half), **excluding** only sales tax and any third-party financing fees passed through to the customer. Commission is **not** reduced by Company's job costs, materials, labor, overhead, or profit margin.

3.8 Pay day — every Friday by 4:00 PM. All commission amounts that have become payable during a given week (re-roof front-end halves on jobs whose deposit was collected, re-roof back-end halves on jobs paid in full, and service commissions on jobs paid in full) are disbursed **every Friday by 4:00 PM, beginning the first Friday on or after the Effective Date (Friday, July 3, 2026)**, by check or direct deposit, accompanied by a statement showing the jobs and amounts paid.

3.9 No draw / advance is provided unless agreed in a separate written addendum signed by both Parties.

4. Credit, Chargebacks & Cancellations

4.1 Credit for a sale. A sale is credited to Representative when he is the originating/closing rep on a customer contract submitted through Company's process and the customer's deposit is collected.

4.2 Cancellations / refunds. If a customer cancels, rescinds (including any statutory right-to-cancel period), or a contract is voided before Company collects payment, no commission is earned on the cancelled amount. If a commission installment was already paid on amounts later refunded to the customer, Representative will repay that portion, or Company may offset it against future commissions ("**chargeback**").

4.3 No chargeback for Company's choices. No chargeback applies to losses caused solely by Company's own decision to discount, write off, or not pursue collection of a validly closed job, except where the customer is genuinely unable to pay.

5. Leads & Lead Ownership

Reflects the intent that Representative is treated fairly and his own pipeline is protected.

5.1 **Company-provided leads.** Leads, advertising responses, and marketing inquiries generated by or paid for by Company ("**Company Leads**") remain Company's property. Commissions on closed Company Leads are paid to Representative at the rates in Section 3.

5.2 **Rep-generated leads.** Leads and customers that Representative personally sources and develops ("**Rep Leads**") will be **credited to Representative** for commission purposes, and Company will not reassign a Rep Lead to another representative to avoid paying Representative the commission he earned on it.

5.3 **No diversion ("won't steal ads").** Representative shall **not** divert, redirect, or convert Company's advertising, marketing, or Company Leads to himself, to any competitor, or to any business other than Company during the Term. Company likewise shall not strip Representative of credit for sales he has properly originated and submitted.

5.4 **Good-faith dealing.** Company will administer lead assignment and commission crediting in good faith and will not act to deprive Representative of commissions he has fairly earned.

6. Non-Compete & Non-Solicitation

6.1 **During the engagement only.** The restrictions in this Section apply **only while this Agreement is in effect (during the Term)** and **end upon termination** — there is **no post-termination non-compete**.

6.2 **During the Term,** Representative shall not, directly or indirectly, sell or solicit roofing or solar work in competition with Company, nor divert Company customers, Company Leads, or Company advertising responses to any competitor or to any business other than Company. (*"Won't steal ads."*)

6.3 **No solicitation of personnel (during the Term).** While this Agreement is in effect, neither Party shall solicit the other's employees or contractors to leave.

6.4 **After termination.** After this Agreement ends, Representative is free to compete and to sell roofing/solar for any business, subject only to the surviving confidentiality obligation in Section 7 (Representative may not use Company's confidential customer lists or trade secrets).

7. Confidentiality

Representative shall keep confidential, during and after the Term, Company's customer lists, pricing, lead sources, advertising data, vendor terms, and other non-public business information, and shall use it solely to perform under this Agreement.

8. Term & Termination

8.1 **Term.** This Agreement begins on the Effective Date and continues until terminated under this Section ("**Term**").

8.2 **Termination for convenience.** Either Party may terminate on **[30]** days' written notice.

8.3 **Termination for cause.** Either Party may terminate immediately for a material breach not cured within **[10]** days of written notice, or immediately for fraud, theft, or a material violation of law.

8.4 **Trailing commissions ("won't screw him over").** Upon termination for any reason **other than** Representative's fraud, theft, or willful misconduct, Representative remains entitled to commissions on **all jobs he originated and submitted before the termination date**, paid at the Section 3 rates and on the Section 3.5 schedule as Company collects payment — including the second (final) 50% installment on jobs already deposited, and commission on jobs already signed but not yet started. Company will pay these trailing commissions in the ordinary course as customer payments are collected.

8.5 **Survival.** Sections 3 (as to earned/trailing commissions), 4, 7, 8.4, and 9 survive termination. (*Section 6 does not survive — the non-compete ends at termination.*)

9. General Provisions

9.1 **Governing law.** This Agreement is governed by the laws of the **State of Florida**, without regard to conflict-of-laws rules.

9.2 **Dispute resolution.** The Parties will first attempt to resolve any dispute in good faith. Any unresolved dispute shall be mediated and, if still unresolved, litigated in the state courts of **Palm Beach County, Florida** (where both Parties are located).

9.3 **Independent legal advice.** Each Party has had the opportunity to obtain independent legal advice before signing.

9.4 **Indemnification.** Representative shall indemnify Company against losses arising from Representative's unauthorized representations, misconduct, or violation of law; Company shall indemnify Representative against losses arising from Company's performance of the customer contracts and Company's own misconduct.

9.5 **Assignment.** Representative may not assign this Agreement without Company's prior written consent.

9.6 **Entire agreement.** This Agreement is the entire agreement between the Parties on its subject matter and supersedes all prior discussions. It may be amended only by a writing signed by both Parties.

9.7 **Severability.** If any provision is held unenforceable, the rest remains in effect, and a court may reduce any overbroad restriction (including in Section 6) to the extent needed to make it enforceable.

9.8 **Counterparts / e-signature.** This Agreement may be signed in counterparts and by electronic signature, each of which is an original.

10. Signatures

COMPANY — SEABREEZE ROOFING & SOLAR

By: _____ Date: _____

Name: **[Signatory Name]**

Title: **[Owner / Authorized Officer]**

REPRESENTATIVE — COLLABORATIVE CONCEPT LLC

By: _____ Date: _____

Name: **Daniel P. Bivins**

Title: **[Managing Member / Owner]**

Exhibit A — IRS Form W-9

(Representative completes and attaches a current Form W-9 before first payment.)

Confirmed from records (Google Drive)

- **Company:** SeaBreeze Roofing & Solar — 2600 High Ridge Rd, Boynton Beach, FL 33426; FL Roofing License CCC1328689; FL Solar License CVC57073; seabreezeroof.com.
- **Representative:** Collaborative Concept LLC, by Daniel P. Bivins — dannybivins83@gmail.com; (561) 475-8615; collaborativeconceptsfl.com.

Status — all key terms filled in

- Parties, addresses, licenses — **set**.
- Effective date **June 30, 2026**; pay every **Friday by 4:00 PM**, first payout **Fri July 3, 2026** — **set**.
- Commission on **gross contract** (not net/profit) — **set**.
- Non-compete applies **during the engagement only**, no post-termination restriction — **set**.
- Dispute venue: **Palm Beach County, FL** — **set**.

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- **SeaBreeze's authorized signer name & title** (Company signature block) — to be entered at signing.
- Term/notice periods in §8.2 (30 days) and §8.3 (10-day cure) are reasonable defaults — adjust if desired.